

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

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20230930-DK-BUTTERFLY-1, INC., F/K/A	:	
BED BATH & BEYOND INC.,	:	
	:	
Complainant,	:	
	:	
v.	:	FMC Docket No.: 24-12
	:	
EVERGREEN LINE JOINT SERVICE	:	
AGREEMENT (FMC#011982) consisting of	:	
EVERGREEN MARINE CORP. (TAIWAN)	:	
LTD., EVERGEEN MARINE (UK) LIMITED,	:	
ITALIA MARITTIMA SpA, EVERGREEN	:	
MARINE (HONG KONG) LTD., AND	:	
EVERGREEN MARINE (SINGAPORE)	:	
PTE. LTD.,	:	
	:	
Respondents.	:	
-----X	:	

JOINT MOTION FOR ENTRY OF PROTECTIVE ORDER

Respondents Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively “Evergreen” or “Respondents”), and Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc (“BBBY” or “Complainant”), hereby move jointly pursuant to Rule 201(i) of the Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.141(j), for entry of a protective order in connection with the above-captioned proceeding (the “Proceeding”). Issuance of a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive. A proposed protective order is attached for consideration by the Presiding Officer. The parties have agreed to the terms of the Protective Order.

Dated: December 5, 2024

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Respectfully submitted,

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Agreement (FMC # 011982) et al.*

PROTECTIVE ORDER

Upon stipulation of Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“BBBY” or “Complainant”), and Respondents Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively “Evergreen” or “Respondents” and, collectively with BBBY, the “Parties”), the Parties, through their respective attorneys, and in order to expedite the exchange of certain confidential information, hereby submit the following proposed Protective Order (the “Order”) to the Presiding Officer for due consideration and issuance:

IT IS HEREBY ORDERED THAT:

1. Except as otherwise ordered by the Presiding Officer, this Order shall apply to all documents and information produced by any party or non-party in the course of or in connection with this action (the “Proceeding”), or any other legal proceeding brought in furtherance or support, or otherwise in connection with, this Proceeding, and all information derived from any of the foregoing, including but not limited to copies, notes, abstracts or summaries of testimony, whether or not such information is designated as “Confidential” or “Attorneys Eyes Only” (as defined below).
2. All documents and information produced by any party or non-party in the course of or in connection with this Proceeding or any other legal proceeding brought in furtherance or support of, or otherwise in connection with, this Proceeding, and all information derived from any of the foregoing, including but not limited to copies, notes, abstracts or summaries of testimony, whether or not such information is designated as “Confidential” or “Attorneys Eyes Only” (as defined below), shall be used and disclosed by the receiving

parties (each a “Receiving Party”) solely for purposes of litigating or attempting to settle this Proceeding or any other legal proceeding brought in furtherance or support of, or otherwise in connection with, this Proceeding, and for no other purpose whatsoever.

3. A Receiving Party shall not disclose any information protected by this Order to any person except in accordance with the terms of this Order. No requesting or Receiving Party or their counsel or experts shall, under any circumstances, sell, offer for sale, advertise, or otherwise publicize either the contents of information protected by this Order, or the fact that the requesting or Receiving Party has obtained information protected by this Order from the producing or testifying party. Unless meeting an exception under Paragraph 6, neither the identity nor the contents of the documents produced herein may be used in connection with any other proceeding (except for any other legal proceedings brought in furtherance or support of, or otherwise in connection with, this Proceeding) or for any purpose whatsoever other than litigating or attempting to settle this Proceeding or any other legal proceeding brought in furtherance or support of, or otherwise in connection with, this Proceeding.
4. Each party or non-party that designates information or documents for protection as “Confidential” or “Attorneys Eyes Only” pursuant to this Order (a “Designator”) must take care to limit any such designation to specific materials that qualify under the appropriate standards as set forth in this Order.
5. Claims of confidentiality as to documents made available to a party for inspection and copying, shall be made, to the extent practicable, before or at the time such documents are made available for inspection and copying, or after designation for copying by the inspecting party but prior to production of the requested copy. In the event that a non-party

produces documents or information or provides testimony in the course of or in connection with this Proceeding, whether pursuant to subpoena or otherwise, such non-party (or one of the Parties, to the extent they have a confidentiality interest in such non-party documents, information, or testimony) shall be entitled to designate such documents, information, or testimony “Confidential” or “Attorneys Eyes Only” as provided herein within thirty (30) days after production of any such documents or information or, in the case of testimony, within thirty (30) days after receipt of the transcript of such testimony. During those thirty (30) days after production or receipt, such documents, information, and testimony shall be treated by the Parties as “Confidential.” Thereafter, such documents, information, and testimony, unless designated by the producing non-party or one of the Parties as “Confidential” or “Attorneys Eyes Only”, will not be deemed “Confidential” or “Attorneys Eyes Only” under this Order.

6. A Designator may designate as “Confidential” any document, information, or testimony that is commercially sensitive and is not publicly known, including documents, information, and testimony provided by non-parties to the producing party or non-party with the expectation that the information remain confidential (“Confidential Information”). No document or information that is in the public domain or which is already known by the Receiving Party through proper means or which is or becomes available to a party from a source other than the party asserting confidentiality, rightfully in the possession of such document or information on a non-confidential basis, shall be deemed or considered to be Confidential Information under the Confidentiality Order. Confidential Information subject to this Order shall be used solely for purposes of this Proceeding or any other legal proceeding brought in furtherance or support, or otherwise in connection with, this

Proceeding, in accordance with provisions of this Order. Except with the prior written consent of the Designator or with prior order of the Presiding Officer, Confidential Information and any information derived therefrom may only be disclosed to:

- a. the parties, corporate officers and employees of the parties who have responsibility for directing or assisting litigation counsel in connection with this Proceeding;
- b. The Receiving Party's in-house or outside counsel, and their legal, paralegal and clerical staff and printing/ copying vendors, and vendors retained to assist in preparing for pretrial discovery, trial and/or hearings, including electronic discovery vendors, litigation support personnel and vendors used to prepare demonstrative and audiovisual aids for use in the Proceeding;
- c. Consultants, investigators, and experts retained by the Receiving Party or their counsel to assist in this Proceeding, provided that such disclosure is only to the extent necessary to perform such work and provided that such consultant, investigator or expert has signed the form attached as Exhibit A.
- d. Vendors hired by the Receiving Party to collect documents, host data, maintain a database of electronic data or perform other work related to the collection, review or production of documents in this Proceeding, provided the vendors having access to the data or documents sign the form attached as Exhibit A;
- e. any officers before whom any deposition in this Proceeding is taken, including stenographic reporters, videographers, and any necessary secretarial, clerical, or other personnel of such officers engaged for the preparation of verbatim transcripts and/or recordings in this Proceeding;
- f. any person(s) who created or previously received the Confidential Information;

- g. employees of the Federal Maritime Commission (the “Commission”);
 - h. the insurers of the Parties;
 - i. anticipated or actual deposition or trial witnesses to whose testimony the Confidential Information is relevant; and
 - j. any other person the Parties have agreed to in advance in writing, provided any such person agrees in writing to abide by the terms of this Order in the form of Exhibit A hereto. A copy of each recipient’s written acknowledgment shall be kept by the party divulging the Confidential Information.
7. The Designator may designate as Attorneys Eyes Only (“AEO”) any information or material whose disclosure to anyone other than counsel has a substantial probability of jeopardizing the producing party’s or non-party’s competitive business interests or privacy interests, or the competitive or privacy interests of the producing party’s or non-party’s suppliers, service providers, customers or clients, or of any individual party in this proceeding. AEO material subject to this Order shall be used solely for purposes of this litigation in accordance with provisions of this Order. Except with the prior written consent of the Designator or with prior order of the Presiding Officer, AEO material and any information derived therefrom may only be disclosed to:
- a. counsel for the parties, including in-house counsel, and their legal, paralegal and clerical staff and printing, copying, and vendors retained to assist in preparing for pretrial discovery, trial and/or hearings, including electronic discovery vendors, litigation support personnel and vendors used to prepare demonstrative and audiovisual aids for use in the Proceeding;

- b. any officers before whom any deposition in this Proceeding is taken, including stenographic reporters, videographers, and any necessary secretarial, clerical, or other personnel of such officers engaged for the preparation of verbatim transcripts and/or recordings in this Proceeding;
- c. any person(s) who created or previously received the AEO material;
- d. employees of the Commission; and
- e. any other person the parties have agreed to in advance in writing, provided any such person agrees in writing to abide by the terms of this Order in the form of Exhibit A hereto. A copy of each recipient's written acknowledgment shall be kept by the party divulging the AEO material. If such person is an expert retained by one of the Parties in this Proceeding who has read and agreed in writing to abide by the terms of this Order in the form of Exhibit A hereto, and the parties are unable to agree on the disclosure of such AEO material to such expert after meeting and conferring in good faith on the issue, AEO material and any information derived therefrom may only be disclosed to such expert upon an Order from the Presiding Officer in the above-captioned matter. The process for resolving such a dispute concerning the disclosure of AEO material to a Receiving Party's expert shall be as follows:
 - i. Counsel for the parties shall confer in a good faith effort to resolve any differences.
 - ii. Failing agreement of the Parties, the party seeking the disclosure of the AEO information to the expert may file an appropriate motion with the Presiding Officer and shall (1) certify that s/he has sought in good faith to confer with

opposing counsel and has been unable to resolve the dispute by agreement; and (2) identify by specific reasons why disclosure of the particular information to the expert should be permitted.

- iii. Within five business days after receiving such a motion, the opposing party shall respond to the motion by showing with particularity the reasons why it believes the AEO information should not be disclosed to the Receiving Party's expert.
- iv. If a motion is made as provided in subparagraph (ii) above, until the motion is ruled upon by the Presiding Officer, the AEO material shall not be disclosed to the expert.
- v. If an expert's analysis, report, or testimony in this Proceeding is delayed or rendered incomplete due to a dispute concerning the disclosure to such expert of AEO material relevant to such expert's analysis, report, or testimony, the party objecting to the disclosure of the AEO material to such expert shall not seek to exclude, disqualify, or strike such expert's analysis, report, or testimony on the basis of its untimeliness or incompleteness. Any deadlines remaining in the applicable scheduling order for this Proceeding at the time a motion is filed pursuant to paragraph 7(e)(ii) shall be extended by the number of days elapsed from the filing of such motion to the filing of the order and/or decision thereon.

- 8. Information shall be designated by the Designator as Confidential Information or AEO material in the following manner:

- a. in the case of information contained in a document, answer to interrogatory, answer to request for admission, response to request for production of documents, response to subpoena, expert report, or other writing, by stamping or otherwise marking, in such a manner as not to interfere with the legibility of the documents, the label “Confidential” or “Attorneys Eyes Only” / “AEO” on the face thereof at the time of production or copying;
- b. in the case of information contained or revealed in a deposition, whether in a question, answer or exhibit, by noting the designation on the record at the time of the deposition, or within thirty (30) days after receipt of the deposition transcript. The transcript pages and any associated documents containing Confidential Information or AEO material shall be bound separately and shall contain on each page, including the cover page, an appropriate notation identifying it as “Confidential” or “Attorneys Eyes Only” / “AEO”.
- c. in the case of information contained or referenced in legal documents filed with the Commission, including, but not limited to, motions and legal memoranda in support, the parties shall seek to reach agreement regarding the release of information, failing such an agreement by stamping or otherwise marking, in such a manner as not to interfere with the legibility of the documents, the words “Confidential” or “Attorneys Eyes Only” / “AEO” on every page containing or referencing the Confidential Information or AEO material. Such documents shall be filed with the Commission under seal. A party that files a pleading in accordance with this paragraph shall promptly serve on the other party (or non-party whose Confidential Information or AEO material is implicated) a proposed redacted copy

of the pleading with the claimed protected information deleted and clearly marked “Proposed Redacted Copy” in the upper right-hand corner of the first page. Within five business days after their receipt of the proposed redacted copy, the receiving party or non-party shall advise the party originating the pleading of any additional redactions it requires. The originating party shall promptly provide the other party or non-party with a copy of the pleading from which all information that any party or non-party has requested be redacted has been redacted and clearly marked “Agreed-Upon Redacted Copy – May be Made Public” in the upper right-hand corner of the page. During the five-day period, the proposed redacted copy shall be treated as protected. At the expiration of the five-day period, or when agreement is reached, the agreed-upon redacted copy shall be filed with the Commission by the originating party; and

- d. in the case of information exchanged prior to the entry of this Order, by procedures adopted by counsel for the parties, which procedures shall be consistent with those specified in subparts (a) – (c) of this paragraph 8.
9. It is the responsibility of all persons receiving materials containing Confidential Information or AEO material that is properly marked to maintain such materials in a secure and appropriately identified manner.
10. It is the responsibility of counsel for each party to this Proceeding to ensure that those receiving Confidential Information or AEO material properly marked pursuant to this Order have knowledge of the terms of this Order and agree to be bound by them.

11. When serving any discovery request or subpoena upon a non-party, it shall be the obligation of the party requesting such discovery from a non-party to include a copy of this Order when said discovery request or subpoena is served upon the non-party.
12. The Designator may designate any discovery material containing Confidential Information or AEO material that it inadvertently produced without the appropriate confidentiality designation by providing written notice to counsel for all Parties identifying the particular discovery material that should have been designated as “Confidential” or “Attorneys Eyes Only” / “AEO”. Such notice must be provided within a reasonable time following the producing party or non-party’s discovery that it produced the discovery material subject to such notice without the appropriate confidentiality designation(s).
13. The designation of documents, information or testimony as Confidential or AEO by the Designator shall not waive or affect in any way the right of the Receiving Party to contest the designation of confidentiality. The designation of confidentiality may be contested as follows:
 - a. Counsel for the Parties shall confer in a good faith effort to resolve any differences.
 - b. Failing agreement of the Parties, the party objecting to the designation of information as Confidential or AEO may file an appropriate motion with the Presiding Officer and shall (1) certify that s/he has sought in good faith to confer with opposing counsel and has been unable to resolve the dispute by agreement; (2) identify by specific category or document number the information for which relief is sought; and (3) show with particularity with respect to each challenged item of Confidential or AEO information, the reasons why such information should not be designated as Confidential or AEO.

- c. Within ten business days after receiving such a motion, the opposing party or non-party shall respond to the motion by showing with particularity with respect to each challenged item of Confidential or AEO information, the reasons why such information has been properly designated as Confidential or AEO.
 - d. The burden of establishing that information is Confidential or AEO shall be on the party or non-party designating it as such.
 - e. If a response is timely made as provided in subparagraph (c) above, until the motion is ruled upon by the Presiding Officer, the designation of confidentiality, whether Confidential or AEO, shall remain in full force and effect and the information shall continue to be accorded the treatment required by this Order.
14. The production or disclosure of Confidential Information or AEO material shall in no way constitute a waiver of any sort, including of: (a) any producing party or non-party's right to object to the production or disclosure of other information in this Proceeding or in any other proceeding; (b) any objections to discovery or admissibility that any producing party or non-party or Receiving Party may assert; or (c) the Parties' ability to use their own documents, communications, information, or testimony.
15. Nothing herein shall be deemed to waive any attorney-client privilege, attorney work product protection, or similar protection recognized by applicable law, or be deemed an admission as to the admissibility in evidence of any facts, documents, communications, information, or testimony revealed in the course of discovery in this Proceeding. In particular, any production of attorney-client privileged, attorney work product, or similarly protected discovery material does not constitute a waiver of any claim of privilege, work product, or other similar protection. A Receiving Party shall not argue that such a

production constitutes a waiver of privilege, work product, or other similar protection and shall promptly return any such privileged, work product, or similarly protected discovery material upon notification or discovery of the production and shall not use the privileged, work product, or other similarly protected information contained therein for any purpose other than to challenge whether such material is protected by the attorney-client privilege, the attorney work product doctrine, or other similar protection, in which case the discovery material being challenged shall be treated as if designated “Attorneys Eyes Only” / “AEO” until such time as the Presiding Officer rules on the privilege protection.

16. If Confidential Information or AEO material in the possession of the Receiving Party is subpoenaed by any court, administrative or legislative body, or any other person purporting to have authority to subpoena such information, the party to whom the subpoena is directed shall give written notice of the subpoena (including the delivery of a copy thereof) to counsel for the party or non-party that produced the information or documents marked Confidential or AEO promptly after the receipt of the subpoena. In the event the subpoena purports to require production of such Confidential or AEO information on less than 7 days’ notice, the party to whom the subpoena is directed shall give immediate email notice of the receipt of such subpoena, and forthwith deliver a copy thereof, to the attorney for the producing party or non-party.
17. Within forty-five days after the conclusion of this Proceeding, including any appellate proceedings, the Parties shall use good faith efforts to assemble and seek return of all Confidential Information and AEO material (including copies and documents containing information derived therefrom) from all persons to whom such materials were disclosed, and shall return all such materials to the original producing party, at the producing party’s

expense. In lieu of returning said Confidential Information and AEO material to the producing party, counsel for the Receiving Party shall supply to the producing party's counsel a certification or affidavit from the Receiving Party's counsel that all Confidential Information and AEO material from that producing party has been collected from all sources within that counsel's control and that the materials have been destroyed. Counsel may retain work product, copies of court filings and official transcripts and exhibits containing or referencing Confidential Information, provided any or all such retained documents are kept confidential and continue to be treated as provided here. The producing party to whom the Confidential Information and AEO material is returned shall retain those materials for a period of six (6) years from the date of their return.

18. The provisions of this Order may be amended or modified at any time by stipulation of the Parties, or by order of the Presiding Officer, and shall survive and remain in full force and effect after the conclusion of this proceeding, including any appellate proceedings.

SO ORDERED.

Dated: December ___, 2024

Alex M. Chintella
Administrative Law Judge

EXHIBIT A

AGREEMENT TO ABIDE BY THE TERMS OF PROTECTIVE ORDER

I acknowledge that I have read the foregoing Protective Order and understand its contents, and I hereby agree to abide by its terms and conditions.

I hereby submit to the jurisdiction of the Federal Maritime Commission and/or the Presiding Officer for the limited purpose of enforcement of the foregoing Protective Order.

NAME: _____

DATE: _____